

## CLEARWATER COUNTY COURT SYSTEM

Sixth Judicial Circuit | Office of the Clerk of the Circuit Court  
Criminal Justice Center, 14250 Court Street, Clearwater

FORM CR-01

FILED BY LAW ENFORCEMENT  
REV 08/2026

IN THE COUNTY / CIRCUIT COURT OF THE SIXTH JUDICIAL CIRCUIT  
IN AND FOR CLEARWATER COUNTY

## ARREST AFFIDAVIT AND PROBABLE CAUSE STATEMENT

Sworn statement of the arresting officer - required for every custodial arrest

|                      |           |                                                                                     |                         |
|----------------------|-----------|-------------------------------------------------------------------------------------|-------------------------|
| THE STATE OF FLORIDA |           | CASE NUMBER (UCN)                                                                   |                         |
| THE STATE OF FLORIDA |           |                                                                                     |                         |
| VS.                  | DEFENDANT | Format: 26-CF-000123 (YY - TYPE - NUMBER)                                           |                         |
|                      |           | DIVISION                                                                            | JUDGE / HEARING OFFICER |
|                      |           |                                                                                     |                         |
| Full name of party   |           | CF felony   MM misdem.   CT crim. traffic   TR traffic   CC civil   SC small claims |                         |

## HOW TO USE THIS FORM

The arresting officer completes every section. Write the narrative in your own words, in order, explaining what you saw and why you believed a crime occurred. A judge must review and sign the last page within 24 hours or the defendant is released. Attach the charge sheet (CR-03) if the State files formal charges.

## ARREST AND AGENCY INFORMATION

|                      |                |                       |                    |                    |
|----------------------|----------------|-----------------------|--------------------|--------------------|
| ARRESTING AGENCY     |                | OFFICER NAME AND RANK |                    | BADGE / ID NO.     |
|                      |                |                       |                    |                    |
| DATE OF ARREST       | TIME OF ARREST | LOCATION OF ARREST    |                    | INCIDENT / CAD NO. |
|                      |                |                       |                    |                    |
| ASSISTING OFFICER(S) |                |                       | BODY CAMERA ACTIVE | BOOKING NO.        |
|                      |                |                       |                    |                    |

## DEFENDANT INFORMATION

|                      |  |                       |  |                      |  |     |
|----------------------|--|-----------------------|--|----------------------|--|-----|
| LAST NAME            |  | FIRST NAME            |  | USERNAME             |  |     |
|                      |  |                       |  |                      |  |     |
| CONTACT HANDLE       |  | CITIZEN ID NO.        |  | DRIVER LICENSE NO.   |  | AGE |
|                      |  |                       |  |                      |  |     |
| RESIDENCE / DISTRICT |  | OCCUPATION / EMPLOYER |  | PHYSICAL DESCRIPTION |  |     |
|                      |  |                       |  |                      |  |     |

## CHARGES

*Use the Clearwater County Charge and Penalty Code*

| # | STATUTE / CODE | OFFENSE DESCRIPTION | DEGREE | BOND |
|---|----------------|---------------------|--------|------|
|   |                |                     |        |      |

PROBABLE CAUSE NARRATIVE

STATE THE FACTS ESTABLISHING PROBABLE CAUSE. WHO, WHAT, WHERE, WHEN, HOW.

Continue on CR-01A if needed

EVIDENCE AND PROPERTY SEIZED

| ITEM NO. | DESCRIPTION | WHERE FOUND | DISPOSITION |
|----------|-------------|-------------|-------------|
|          |             |             |             |

WITNESSES

| NAME | ROLE (VICTIM / WITNESS / OFFICER) | CONTACT |
|------|-----------------------------------|---------|
|      |                                   |         |

RIGHTS AND BOOKING ADVISORY

- ☐ Miranda warning read to defendant
- ☐ Defendant invoked right to remain silent
- ☐ Defendant provided a statement
- ☐ Search warrant obtained (attach CR-05)
- ☐ EMS clearance obtained
- ☐ Defendant acknowledged understanding
- ☐ Defendant requested an attorney
- ☐ Search conducted incident to arrest
- ☐ Vehicle towed / impounded
- ☐ Property receipt issued to defendant

Under penalty of perjury, I swear that the foregoing statement is true and correct to the best of my knowledge and belief, and that the facts stated establish probable cause to believe the named defendant committed the offense(s) charged.

SIGNATURES

AFFIANT / ARRESTING OFFICER  
Signature of officer swearing to this affidavit

PRINTED NAME

DATE

SUPERVISOR APPROVAL  
Sergeant or above

PRINTED NAME

DATE

JUDICIAL PROBABLE CAUSE DETERMINATION

To be completed by a judge or magistrate. Review the affidavit above and select one finding. This section must be completed within 24 hours of the arrest.

FINDING OF THE COURT

☐ **PROBABLE CAUSE FOUND**  
The affidavit establishes probable cause for the offense(s) charged. The defendant shall be held for first appearance.

☐ **PROBABLE CAUSE FOUND AS TO SOME COUNTS ONLY**  
Probable cause exists for the counts listed below. All other counts are dismissed without prejudice.

☐ **NO PROBABLE CAUSE - DEFENDANT RELEASED**  
The affidavit does not establish probable cause. The defendant shall be released immediately.

☐ **AFFIDAVIT INSUFFICIENT - SUPPLEMENT REQUIRED**  
The affiant shall file a supplemental affidavit within the time stated below.

COUNTS FOUND / DISMISSED

SUPPLEMENT DUE BY

BOND SET AT

JUDICIAL FINDINGS AND COMMENTS

FINDINGS, CONDITIONS, OR INSTRUCTIONS TO COUNSEL

JUDGE / MAGISTRATE

Sixth Judicial Circuit

PRINTED NAME

DATE

This affidavit is a sworn document. Every fact stated must be within the affiant's personal knowledge or attributed to a source the affiant reasonably believes reliable. Overstating what was observed is the single most common reason an arrest is thrown out at the probable cause stage.